

Tentative Rulings for May 14, 2026
Department 502

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

24CECG03435 *Higuera v. National Impact Mentoring & Training Program et al.*
(Dept. 502)

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

25CECG03846 *Alexandra Seifert v. Paul Michaelides* is continued to Thursday, May 21, 2026, at 3:30 p.m. in Department 502.

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 502

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(03)

Tentative Ruling

Re: ***Garcia v. Fresno Plumbing & Heating, Inc.***
Case No. 24CECG03236

Hearing Date: May 14, 2026 (Dept. 502)

Motion: Plaintiff's Motion for Relief from Late Filing of Class Certification Motion
Defendant's Motion to Strike Class Claims

Tentative Ruling:

To grant plaintiff's motion for relief from late filing of class certification motion. To deny defendant's motion to strike class claims.

Explanation:

Plaintiff seeks relief from his late filing of the class certification motion under Code of Civil Procedure section 473, subdivision (b).

Under section 473(b), "The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Thus, the first portion of section 473(b) permits the court to grant discretionary relief if the moving party shows that the judgment, dismissal, or other proceeding was taken against them due to mistake, inadvertence, surprise, or excusable neglect.

Also, "[n]otwithstanding any other requirements of this section, the court *shall*, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (*Ibid.*)

Thus, the second portion of section 473(b) provides for mandatory relief from a default, default judgment or dismissal entered due to the mistake, inadvertence, surprise, or neglect of a party's attorney, even if the error was not reasonable. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 257.)

"[T]he provisions of section 473 of the Code of Civil Procedure are to be liberally construed and sound policy favors the determination of actions on their merits.' [Citation.]" (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 256.) "[B]ecause the law strongly favors trial and disposition on the merits, any doubts in

applying section 473 must be resolved in favor of the party seeking relief from default.” (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.)

“It is the policy of the law to favor, whenever possible, a hearing on the merits. Appellate courts are much more disposed to affirm an order when the result is to compel a trial on the merits than when the default judgment is allowed to stand. Therefore, when a party in default moves promptly to seek relief, very slight evidence is required to justify a trial court's order setting aside a default.” (*Shamblin v. Brattain* (1988) 44 Cal.3d 474, 478, citations omitted.)

Also, the moving party must show that they were diligent in seeking relief from the default, and that they sought relief within a reasonable time after they learned of the default. “This court has held that what a ‘reasonable time’ is in any case depends primarily on the facts and circumstances of each individual case, but definitively requires a showing of diligence in making the motion after the discovery of the default. In other words, the moving party must not only make a sufficient showing of ‘mistake, inadvertence, surprise, or neglect’ in order to excuse the original default, but must also show diligence in filing its application under section 473 after learning about the default. If there is a delay in filing for relief under section 473, the reason for the delay must be substantial and must justify or excuse the delay.” (*Stafford v. Mach* (1998) 64 Cal.App.4th 1174, 1181, citations omitted.)

Here, plaintiff seeks relief from the dismissal under the both mandatory and discretionary relief portions of section 473(b). The mandatory portion of section 473(b) does not require plaintiff to show that the dismissal was entered due to the excusable mistake, inadvertence, surprise, or neglect of himself or his attorney. Instead, he only has to provide a declaration from his attorney stating that the dismissal was entered due to his attorney's mistake, inadvertence, surprise, or neglect, whether the error was excusable or not. (Code Civ. Proc., § 473, subd. (b).) As long as the dismissal was actually entered due to the attorney's mistake or neglect, even if the attorney's actions were not reasonable, the court must grant relief. (*Lorenz v. Commercial Acceptance Ins. Co.* (1995) 40 Cal.App.4th 981, 989.)

“The attorney affidavit provision authorizes relief from the entry of default and the resulting default judgment or a dismissal. It does not permit relief from other judgments, such as a summary judgment or judgment after trial. It also does not allow relief from a costs order. Although the attorney affidavit provision authorizes relief from a dismissal, it does not apply to dismissals under section 583.410 for delay in prosecution of the action. This is because these types of dismissals are ‘ordered after a hearing in which the court has evaluated and considered the excuses for delay. Plaintiff cannot circumvent the court's ruling by filing an attorney affidavit of fault: “(T)he Legislature cannot have intended section 473 to be the perfect escape hatch from the dismissals statutes.”’” (*Id.* at pp. 989–990, citations omitted.)

Here, plaintiff's counsel moves for relief under the mandatory portion of section 473(b), contending that her failure to file the class certification motion by the court-ordered deadline of October 14, 2025 was due to her mistake or neglect in selecting “Motion (No Fee)” instead of “Motion... \$60” when submitting the motion for filing, which resulted in the filing service failing to pay filing fees for the motion and the clerk rejecting the filing. She alleges that her mistake is likely to result in the denial of the class

certification motion and dismissal of the class claims, and thus the mandatory portion of section 473(b) applies and requires the court to grant relief.

However, so far, the court has not dismissed the class claims from the case, and no default or default judgment has been entered. Thus, the mandatory portion of section 473(b) does not apply here. The mandatory portion of section 473(b) only applies where there is a default, default judgment, or dismissal entered that was the result of the attorney's mistake or neglect. Since there has been no default, default judgment, or dismissal entered here, the court will not grant relief under the mandatory portion of the statute.

On the other hand, the court intends to grant relief under the discretionary portion of section 473(b). Unlike the mandatory portion of the statute, the discretionary portion allows the court to grant relief from a judgment, dismissal, order, or other proceeding taken against a party through his or her mistake, inadvertence, surprise, or excusable neglect. (*Lorenz, supra*, at p. 989, citing Code Civ. Proc., § 473(b).) Thus, even if no default, default judgment, or dismissal has been entered, the court still has discretion to grant relief from an order or other proceeding as long as the moving party shows that the proceeding was taken as a result of mistake, inadvertence, surprise, or excusable neglect. (*Ibid.*)

"The test for discretionary relief under Code of Civil Procedure section 473 requires the party seeking relief to show excusable error. "'A party who seeks relief under section 473 on the basis of mistake or inadvertence of counsel must demonstrate that such mistake, inadvertence, or general neglect was excusable because the negligence of the attorney is imputed to his client and may not be offered by the latter as a basis for relief.'" In determining whether the attorney's mistake or inadvertence was excusable, "the court inquires whether 'a reasonably prudent person under the same or similar circumstances' might have made the same error.[]" In other words, the discretionary relief provision of section 473 only permits relief from attorney error "fairly imputable to the client, i.e., mistakes anyone could have made." "Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable. To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice." [¶] The party seeking relief under section 473 must also be diligent. Thus, an application for relief must be made 'within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.'" [¶] Where the mistake is excusable and the party seeking relief has been diligent, courts have often granted relief pursuant to the discretionary relief provision of section 473 if no prejudice to the opposing party will ensue.'" (*Comunidad en Accion v. Los Angeles City Council* (2013) 219 Cal.App.4th 1116, 1132–1133, citations omitted.)

Here, plaintiff's counsel failed to file the class certification motion by the court-ordered deadline of October 14, 2025. However, counsel alleges that she did serve the class certification motion on opposing counsel on October 14, 2025, and she attempted to file the motion with the court electronically. (*Kirnosova decl.*, ¶ 5.) The only reason that the motion was not actually filed with the court was that counsel inadvertently selected the wrong category on the drop-down menu with the electronic filing service. (*Id.* at ¶ 8.) She selected "Motion (No Fee)" instead of the category indicating a filing fee was required. (*Ibid.*) As a result, the filing service did not pay the \$60 filing fee and the court clerk rejected the motion. (*Ibid.*) Also, plaintiff's counsel was on leave until

November 18, 2025, and she was swamped with emails and matters in other cases when she returned from leave, so she was not aware of the rejected filing until she received defendant's notice of opposition and statement of failure to file the motion on December 15, 2025. (*Id.* at ¶¶ 11, 12.) She filed the motion for class certification on January 7, 2026, and she filed her motion for relief from the failure to file the motion on time on January 23, 2026. (*Id.* at ¶ 14.)

Thus, plaintiff's counsel has made an adequate showing that the failure to file the motion pursuant to the court's deadline was the result of excusable mistake, inadvertence, or neglect, as the failure to select the correct category for electronically filing a motion is a mistake that anyone could have made, even with the exercise of reasonable diligence. Also, while counsel did delay in resubmitting the motion and seeking relief from the late filing, the delay was not unreasonable or excessive. Counsel has also adequately explained the delay in filing the motion and seeking relief, which was caused by her being on leave and then being swamped with other work after she returned. Once she realized the motion had been rejected, she filed it within three weeks and sought relief two weeks later. Thus, plaintiff did not excessively delay in bringing the motion for relief after she discovered the filing had been rejected.

While defendant claims that it will be prejudiced because the class certification motion will now be heard later and the class period and number of class members may expand due to the delay, the court can adjust the class size and period to account for the delay, which should mitigate any prejudice. Also, while defendant complains that plaintiff did not submit a copy of the proposed pleading with his motion for relief as required by the Rules of Court, plaintiff has already filed the motion for class certification with the court, so there was no need to also submit a copy of the motion for class certification with the motion for relief.

Finally, defendant has pointed out that the named plaintiff's declaration was not even signed until December 9, 2025, several weeks after the class certification motion was due. Defendant argues that the lack of a declaration from the plaintiff means that the failure to timely file the class certification motion was not caused by counsel's error in failing to pay the filing fee, but rather because counsel did not yet have a signed declaration from the named plaintiff. However, there is no dispute that plaintiff did serve and attempt to file the class certification motion on October 14, 2025, which was the deadline for filing the motion. The fact that the motion was incomplete because there was no declaration from the named plaintiff at the time may have rendered the motion defective, but it would still have been timely filed but for the failure to pay the filing fee. Therefore, the lack of the plaintiff's declaration was not the cause of the late filing. Nor has defendant shown that the failure to obtain the plaintiff's declaration on October 14, 2025 caused it any real prejudice. The declaration was eventually filed on December 9, 2025, and defendant has had ample time to read and consider it, as well as to respond to plaintiff's claims.

Therefore, the court intends to grant plaintiff's motion for relief from the late filing of the motion for certification. Also, since the court intends to grant plaintiff's motion for relief, it will deny defendant's motion to strike and dismiss the class claims.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

(03)

Tentative Ruling

Re: ***Dawood v. California Department of Transportation***
Case No. 24CECG00069

Hearing Date: May 14, 2026 (Dept. 502)

Motion: Defendants' Motion to Compel Deposition of Plaintiff and
Request for Monetary Sanctions

Defendants' Motion to Compel Plaintiff to Produce
Documents, and for Money and Issue Sanctions

Tentative Ruling:

To grant defendants' motion to compel deposition of plaintiff to appear for his next noticed deposition dates of May 27 and 28, 2026. To order plaintiff to pay sanctions of \$1,075. Plaintiff shall pay sanctions to defense counsel within 30 days of the date of service of this order.

To deny defendants' motion to order plaintiff to produce the documents listed in the deposition notice, as the court has already granted an order requiring plaintiff to produce the documents. The court's prior order still stands, and plaintiff is required to comply with it. To deny defendants' motion for an order plaintiff to pay additional money sanctions with regard to the document requests, as well as the request for issue sanctions.

However, if plaintiff fails to appear for his deposition again, or fails to produce the documents as previously ordered by the court, then the court will consider whether to order additional sanctions, including further money, issue, evidence, or terminating sanctions.

Explanation:

Under Code of Civil Procedure section 2025.450, "If, after service of a deposition notice, a party to the action ... without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

Also, "If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Here, the court has already ordered plaintiff to attend his deposition and produce the documents listed in the deposition notice. (See Court's Order of October 28, 2025.) The court also ordered plaintiff to pay sanctions of \$3,331.90. (*Ibid.*)

Plaintiff did appear for his deposition on November 17, 2025. However, he failed to complete the deposition, apparently due to an emergency. When defense counsel tried to reschedule the deposition, plaintiff offered dates of December 29, 2025 and February 10, 2026. Defense counsel noticed the deposition for those dates. However, plaintiff then stated he could not appear for the December 29, 2025 date. Defense counsel then withdrew the December 29, 2025 date and noticed only the February 10, 2026 date. However, on February 9, 2026, the day before the deposition, plaintiff for the first time stated that he could not attend the deposition, allegedly due to a sudden medical problem. Defense counsel refused to take the deposition off calendar unless plaintiff produced documentation of his medical problem. Plaintiff's counsel did not respond before the deposition date, so defense counsel tried to take the deposition on February 10, 2026. Plaintiff failed to appear at the deposition.

Thus, defendants have shown that plaintiff failed to appear for his noticed deposition without first serving an objection, and as a result defendants are entitled to an order compelling plaintiff to appear for his deposition as well as monetary sanctions. While plaintiff claims that his failure to appear was due to lower back pain as stated in a doctor's note that he has now provided, the doctor's note was not written until several days after the February 10, 2026 deposition date. Nor does the note indicate that plaintiff's back pain was so bad that he would have been unable to attend a deposition. Given plaintiff's history of failing to appear for his deposition, or to complete the deposition that he did appear for, defense counsel was justified in being skeptical that his medical condition actually prevented him from appearing at the last deposition. Therefore, the court finds that plaintiff unjustifiably failed to appear at his deposition, and it will order him to appear at the next noticed deposition dates of May 27 and 28, 2026.

In addition, defendants are entitled to an order awarding sanctions against plaintiff for his unjustified failure to appear for his deposition. Sanctions are mandatory where the court grants a motion to compel a party's deposition, unless the failure to appear is justified or other circumstances make sanctions unjust. (Code Civ. Proc., § 2025.450, subd. (g)(1).) Therefore, the court intends to grant defendants' request for sanctions against plaintiff, in the amount of \$1,075.00.

On the other hand, the court intends to deny the motion to grant another order compelling plaintiff to produce documents listed in the deposition notice, as the court has already granted an order compelling plaintiff to produce the documents. That order still stands, so another order is not necessary. The court also declines to grant the motion for issue sanctions, as it does not appear that issue sanctions are warranted at this time. Plaintiff claims that he has now provided his tax records, and he also claims that he has no calendars to produce, so it appears that he has complied with the court's prior order regarding document production. He also states that he has paid sanctions as ordered by the court, albeit months after he was ordered to do so. Thus, there is no basis for concluding that he is unjustifiably refusing to comply with the court's order. As a result, the court intends to deny the motion to the extent that defendants seek another order compelling plaintiff to provide documents, as well as the request for additional money and issue sanctions.

However, if plaintiff fails to appear for his deposition again, or fails to produce the documents as previously ordered by the court, then the court will consider whether to order additional sanctions, including further money, issue, evidence, or terminating sanctions.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 05/12/26
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: ***Zuniga v. Community Medical Centers***
Superior Court Case No. 24CECG03545

Hearing Date: May 14, 2026 (Dept. 502)

Motion: By Defendant for Summary Judgment or, in the
Alternative, Summary Adjudication

Tentative Ruling:

To grant summary adjudication as to the first, second, and third causes of action. To deny summary adjudication as to the fourth and fifth causes of action and as to punitive damages. The motion for summary judgment is denied.

Explanation:

Preliminary Matters

Evidentiary Objections

The court sustains plaintiff's evidentiary objection numbers 1 and 13-15. The court overrules plaintiff's evidentiary objection numbers 2-3 and 5-12. For evidentiary objection number 4, the court sustains the objection as to the handwritten portions, but overrules as to the remainder.

The court sustains defendant's evidentiary objection number 24. The court overrules defendant's evidentiary objection numbers 1-23 and 25-30.

New Evidence on Reply

Defendant introduced new evidence in the reply. This is expressly forbidden in Code of Civil Procedure section 437c, subdivision (b)(4): "The reply shall not include any new evidentiary matter, additional material facts or separate statement..." The court will not consider the new evidence presented in the reply.

Judicial Notice

Evidence Code section 452 provides the court may take judicial notice of (c) official acts and (d) court records. (Evid. Code, § 452, subd. (c), (d).) The existence of a document may be judicially noticeable, although the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable. (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114; *Apple Inc. v. Superior Court* (2017) 18 Cal.App.5th 222, 241.) Factual findings in a prior judicial opinion are not a proper subject of judicial notice. (*Kilroy v. State of California* (2004) 119 Cal.App.4th 140, 145-146.) The court takes judicial notice of the Statement of Information CA Nonprofit Corporation filed September

30, 2024 and the May 17, 2022 Judgment Confirming Final Arbitration Award in Fresno Superior Court Case Number 16CECG00071, but only for their existence.

Merits

Burden on Summary Judgment/Adjudication

A trial court shall grant summary judgment where there are no triable issues of material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) In determining a motion for summary judgment, the court views the evidence “in the light most favorable to the plaintiff”, liberally construing plaintiff's evidence and strictly scrutinizing the defendant's evidence. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 254.) The court does not weigh evidence or inferences (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 856), nevertheless, the court shall consider all inferences reasonably deducible from the evidence unless it is controverted by other inferences or evidence. (Code Civ. Proc., § 437c, subd. (c).) Doubts as to whether there is a triable issue of fact are resolved in favor of the opposing party. (*Ingham v. Luxor Cab Co., supra*, 93 Cal.App.4th 1045, 1049.)

Summary adjudication is the proper mechanism for challenging a particular, “cause of action, an affirmative defense, a claim for punitive damages, or an issue of duty.” (*Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 242.) However, “[a] motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1); see also *Catalano v. Superior Court* (2000) 82 Cal.App.4th 91, 97 [piecemeal adjudication prohibited].)

Pleadings Define the Scope

Defendant notes that plaintiff attempts to expand what is alleged in his complaint by way of his opposition to this motion. On summary judgment, the pleadings define the scope of the issues to be resolved. (*Hutton v. Fidelity National Title Co.*, (2013) 213 Cal.App.4th 486, 493; *Miller v. Department of Corrections & Rehabilitation* (2024) 105 Cal.App.5th 261, 286.) To the extent the pleadings did not state sufficient facts to state a cause of action, but were not the subject of a demurrer, the court will consider evidence where such cause of action appeared in the complaint.

Burden Shifting in Employment Discrimination Cases

Special rules govern allocation of the burden of proof on motions for summary judgment in employment discrimination cases, under both federal and state law, and state courts follow the approach taken by federal courts in these cases. The test uses a system of shifting burdens. (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 354-355.) It is intended to sharpen the inquiry into the factual question of intentional discrimination. When the employer seeks summary judgment, the initial burden rests with the employer to show that no unlawful discrimination or retaliation occurred. (*Guz v. Bechtel Nat. Inc., supra*, 24 Cal.4th at p. 354-355.) It does this first by showing that the employee's action has no merit. (*Ibid.*) It may do so by evidence that either: 1) negates an essential element of the employee's claim; or 2) shows some “legitimate, nondiscriminatory reason” for the

action taken against the employee. (*Caldwell v. Paramount Unified School Dist.* (1995) 41 Cal.App.4th 189, 202–203.)

If the employer meets this initial burden, to avoid summary judgment the employee must produce “substantial responsive evidence that the employer's showing was untrue or pretextual,” thereby raising at least an inference of discrimination. (*Hersant v. California Dept. of Social Services* (1997) 57 Cal.App.4th 997, 1004-1005 (internal quotes omitted); *University of So. Calif. v. Sup.Ct. (Miller)* (1990) 222 Cal.App.3d 1028, 1036.) In determining whether these burdens were met, the court must view the evidence in the light most favorable to plaintiff, as the nonmoving party, liberally construing his evidence while strictly scrutinizing defendant's evidence. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 856.)

Discrimination

The Fair Employment and Housing Act (“FEHA”) makes it an unlawful employment practice to discriminate against a person because of a physical or mental disability. (Code Civ. Proc., § 12940, subd. (a); *Faust v. California Portland Cement Co.* (2007) 150 Cal.App.4th 864, 886.) In order to show a prima facie case of disability discrimination under FEHA, an employee must show 1) she suffered from a disability, 2) she could perform the essential job duties with or without reasonable accommodations, and 3) that she was subjected to adverse employment action because of the disability. (*Faust v. California Portland Cement Co., supra*, 150 Cal.App.4th at p. 886.) Defendant argues that plaintiff's disability claim fails because he cannot establish a causal nexus and because there was a legitimate, non-discriminatory reason for his termination.

In order to avoid summary judgment, a plaintiff must produce substantial evidence of a pretext. (*Horn v. Cushman & Wakefield Western, Inc.* (1999) 72 Cal.App.4th 798, 807.) Speculative evidence is insufficient. (*Id.* at p. 808.) Neither are “uncorroborated and self-serving declarations.” (*King v. United Parcel Service, Inc.* (2007) 152 Cal.App.4th 426, 433.) The ultimate question is whether the motivation for the termination was discriminatory. (*Guz v. Bechtel Nat. Inc.,* (2000) 24 Cal.4th 317, 358.) An employee must show “weaknesses, implausibilities, inconsistencies, incoherencies, or contradictions in the employer's proffered legitimate reasons for its action that a reasonable factfinder could rationally find them ‘unworthy of credence’.” (*Morgan v. Regents of University of Cal.* (2000) 88 Cal.App.4th 52, 75, quoting *Hersant v. Department of Social Services* (1997) 57 Cal.App.4th 997, 1005.) Where an employee presents that the employer had mixed motives, both legitimate and discriminatory, the employee must show that a disability was a substantial motivating factor in the termination decision. (*Lin v. Kaiser Foundation Hospitals* (2023) 88 Cal.App.5th 712, 722.)

Defendant asserts that there is no causal nexus between plaintiff's injury in 2015 and his termination in 2021. Here, it is undisputed that plaintiff was electrocuted in October 2015 while he was at work. (UMF No. 2.) It is also undisputed that plaintiff was terminated on June 16, 2021. (UMF No. 28.) Defendant argues that there is no causal nexus where plaintiff's injury occurred six years prior to his termination. Plaintiff counters that his injury resulted in permanent disabilities. (PSS No. 2.) He further contends that he made requests for modified work consistent with his medical restrictions. (PSS No. 8.) Plaintiff asserts that just days prior to being placed on leave, he spoke with a supervisor

about his medical restrictions. (PSS. No. 9.) Thus, plaintiff has connected issues with modified work consistent with his medical restrictions and his termination, despite the length of time between the initial injury and the termination.

Defendant asserts that plaintiff was terminated because of misconduct. In May 2021, defendant received complaints that plaintiff was shouting, cursing, and exhibiting hostility toward his team leader. (UMF No. 20.) Sara White investigated the complaints. (UMF No. 24.) Defendant asserts the investigation substantiated the complaints. (UMF No. 25.) As a result, Human Resources recommended termination. (UMF No. 26.) Based on this recommendation, Stan Zulewski and Dru Walker decided to terminate plaintiff's employment. (UMF No. 27.) Plaintiff does not dispute getting into an argument with a coworker in May 2021. However, plaintiff asserts that this behavior was not one-sided and that his co-worker was an active participant. (UMF No. 21.) Plaintiff challenges the validity of the investigation and its findings. (UMF No. 25.) He argues that he was never provided an opportunity to review video footage of the incident. (UMF No. 25.) Defendant had asserted that this video footage no longer existed, but it was found after the opposition here was filed. Plaintiff asserts that while he yelled and used profanity, he did not get in his co-worker's face during the argument. (PSS No. 83.) Plaintiff also asserts that yelling and profanity were commonplace at work. (PSS Nos. 103-106.)

Ultimately, plaintiff's evidence is speculative with regard to his assertions of pretext in the context of disability discrimination. Summary adjudication is granted as to the first cause of action.

FEHA Retaliation

Plaintiff's second cause of action is for retaliation pursuant to Government Code section 12940, subdivision (m). Government Code section 12940, subdivision (m) prohibits employers from retaliating where an employee seeks accommodation. FEHA prohibits an employer from terminating an employee based on that employee's opposition to prohibited practices under FEHA. (*Vines v. O'Reilly Auto Enterprises, LLC* (2022) 74 Cal.App.5th 174, 185.) To show such retaliation, a plaintiff must show 1) he engaged in a protected activity, 2) that he suffered an adverse employment action, and 3) a causal link between the protected activity and the adverse employment action. (*Ibid.*) There is no requirement that the conduct actually be discriminatory, only that the employee has complained of something the employee believes to be discriminatory. (*Ibid.*) Once the employee has made a prima facie showing, then the burden shifts to the employer to show a legitimate, nondiscriminatory reason for the adverse action. (*Mamou v. Trendwest Resorts, Inc.* (2008) 165 Cal.App.4th 686, 715.) Where the employer does this, the employee must then show either pretext or that the "evidence as a whole supports a reasoned inference that the challenged action was the product of discriminatory or retaliatory animus." (*Light v. Department of Parks & Recreation* (2017) 14 Cal.App.5th 75, 94.)

Here, as discussed above, plaintiff has presented only speculative evidence of pretext in the context of disability discrimination. Summary adjudication is granted as to the second cause of action.

Failure to Prevent

Defendant argues that the cause of action for failure to prevent discrimination fails because it cannot survive the lack of a successful disability claim. Government Code section 12940, subdivision (k), makes it an unlawful employment practice to fail to take reasonable steps to prevent discrimination. As discussed above, plaintiff has not sufficiently demonstrated his discrimination claims. Summary adjudication is granted as to the third cause of action.

Labor Code section 1102.5 Retaliation

Labor Code section 1102.5 prohibits retaliation by employers for engaging in a protected activity. The California Supreme Court in *Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703, 712 has clarified that Labor Code section 1102.6, not *McDonnell Douglas*, "supplies the applicable framework for litigating and adjudicating section 1102.5 whistleblower claims." First, there must be a showing by a preponderance of the evidence that an employee's protected activity was a contributing factor to an adverse employment action. (*Ibid.*) Then, the employer must show by clear and convincing evidence that the adverse employment action would have occurred for legitimate and independent reasons even if the employee had not engaged in the protected activity. (*Ibid.*) Plaintiffs may satisfy their burden even when legitimate reasons contribute to an adverse employment action. (*Id.* at pp. 713-714.) Plaintiff also need not show the employer's reason was pretextual. (*Id.* at p. 716.)

Relevant here is a subpoena plaintiff received regarding testifying in a discrimination case brought by another employee against defendant. (UMF No. 38.) Defendant asserts that this is not protected activity because plaintiff ultimately did not testify. However, Labor Code section 1102.5, subdivision (b) notes that a belief the employee will disclose information is sufficient. Thus, the fact that plaintiff did not end up providing testimony against defendant does not alter the applicability of the code section here.

Here, defendant argues that decisionmakers were unaware of the subpoena or plaintiff's plans to testify. However, plaintiff notes that defendant included Walker, a named defendant in the matter in which plaintiff's testimony was anticipated, as a decisionmaker. (UMF Nos. 52-53.) It is undisputed that plaintiff provided the subpoena to Harry Boe and Butch Garrison in order to request the time off work. (UMF No. 41.) While defendant asserts that no one at the hospital knew of plaintiff's plans, plaintiff asserts that he informed Boe and Garrison of his intent to testify. (UMF No. 43.) Additionally, defendant concedes that White knew of the request for time off to testify. (UMF No. 46.) Plaintiff asserts that three of the four people involved in the decision to terminate him were aware that he requested time off to testify. (UMF Nos. 46-47, 49-50, 52-53.) One of those decisionmakers was a named defendant in the action. (UMF Nos. 52-53.) Thus, plaintiff has met his burden.

Defendant has not met its burden in showing clear and convincing evidence that the termination would have occurred even if plaintiff had not been subpoenaed to testify. This is particularly evident where defendant's own evidence appears to contradict itself with regards to the knowledge possessed by each decisionmaker.

